

Court No. - 35

Case :- WRIT - C No. - 12702 of 2004

Petitioner :- Roop Narayan Tripathi

Respondent :- Kanpur Electric Supply Company, Kanpur Nagar Thru' Its M.D.

Petitioner Counsel :- A.K. Sachan, Arun Kumar Gupta

Respondent Counsel :- C.S.C., R. Saxena

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

List correctly showing the name of Sri Mridul Tripathi as counsel for the respondents.

Order Date :- 28.9.2010

Shiraz

Court No. - 35

Case :- WRIT - C No. - 12702 of 2004

Petitioner :- Roop Narayan Tripathi

Respondent :- Kanpur Electric Supply Company, Kanpur Nagar
Thru' Its M.D.

Petitioner Counsel :- A.K. Sachan, Arun Kumar Gupta

Respondent Counsel :- C.S.C., R. Saxena

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

Sri Mridul Tripathi, learned counsel appearing for the respondent no. 1 prays for and is allowed four weeks further time to file counter affidavit.

Let fresh steps for service on respondent nos. 4 and 5 be taken by registered post.

List thereafter.

Order Date :- 5.10.2010

Ram Murti

Court No. - 35

Case :- WRIT - C No. - 12702 of 2004

Petitioner :- Roop Narayan Tripathi

Respondent :- Kanpur Electric Supply Company, Kanpur Nagar Thru' Its M.D.

Petitioner Counsel :- A.K. Sachan, Arun Kumar Gupta

Respondent Counsel :- C.S.C., R. Saxena

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

Passed over on the illness slip of Smt. Mridul Tripathi, learned counsel for the respondent no.1.

Order Date :- 14.12.2010

safi

Court No. - 35

Case :- WRIT - C No. - 12702 of 2004

Petitioner :- Roop Narayan Tripathi

Respondent :- Kanpur Electric Supply Company, Kanpur Nagar Thru' Its M.D.

Petitioner Counsel :- A.K. Sachan, Arun Kumar Gupta

Respondent Counsel :- C.S.C., R. Saxena

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

Sri A.K. Sachan, learned counsel for the petitioner and Sri. Mridul Tripathi, learned counsel for the respondent No.1 have sent illness slip today.

The case is passed over for the day.

Order Date :- 29.1.2011

piyush

Court No. - 32

Case :- WRIT - C No. - 12702 of 2004

Petitioner :- Roop Narayan Tripathi

Respondent :- Kanpur Electric Supply Company, Kanpur Nagar Thru' Its M.D.

Petitioner Counsel :- A.K. Sachan, Arun Kumar Gupta

Respondent Counsel :- C.S.C., R. Saxena

Hon'ble Vineet Saran, J.

Hon'ble Ashok Srivastava, J.

List with previous papers before the appropriate Bench.

Order Date :- 14.2.2011

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Court No. - 35

Case :- WRIT - C No. - 12702 of 2004

Petitioner :- Roop Narayan Tripathi

Respondent :- Kanpur Electric Supply Company, Kanpur Nagar Thru' Its M.D.

Petitioner Counsel :- A.K. Sachan, Arun Kumar Gupta

Respondent Counsel :- C.S.C., R. Saxena

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

Sri A.K. Sachan, learned counsel for the petitioner, states that a copy of Counter Affidavit on behalf of respondent No.1 has been received by him on 7th February, 2011. The said Counter Affidavit is not on record.

Office is directed to trace the same and place it on record.

Sri A.K. Sachan, learned counsel for the petitioner prays for and is granted three weeks' time for filing Rejoinder Affidavit.

List thereafter.

Office will submit its report regarding service of notice issued to respondent Nos. 4 and 5 as per the office report dated 11.10.2010.

Order Date :- 15.2.2011

piyush

Court No. - 35

Case :- WRIT - C No. - 12702 of 2004

Petitioner :- Roop Narayan Tripathi

Respondent :- Kanpur Electric Supply Company, Kanpur
Nagar Thru' Its M.D.

Petitioner Counsel :- A.K. Sachan, Arun Kumar Gupta

Respondent Counsel :- C.S.C., R. Saxena

Hon'ble Sunil Ambwani, J.

Hon'ble Kashi Nath Pandey, J.

We have heard Sri A.K. Sachan, learned counsel for the petitioner.

Smt. Mridul Tripathi, counsel for the Kanpur Electric Supply Company has filed a counter affidavit.

Learned counsel for the petitioner submits that Smt. Saroj Shukla and Sri Naresh Chandra Shukla - respondent Nos. 4 and 5, who were issued notices and have been served by order of Court, have played fraud with the petitioner. The petitioner - Sri Roop Narayan Tripathi had sold House No. 127/727, W Block, Juhi Gaushala, Kanpur Nagar to Smt. Saroj Shukla and Sri Naresh Chandra Shukla - respondent Nos. 4 & 5, for Rupees One Lakh, by a registered sale deed dated 29.7.1988. The house was sold by him to respondent Nos. 4 and 5 without any electricity connection. Smt. Saroj Shukla and Sri Naresh Chandra obtained electricity connection in the name of the petitioner in the year 1991, in respect of which now a demand of electricity dues of Rs.3,74,677/- has been raised, and a recovery certificate has been issued to recover the amount from the petitioner. The petitioner is not in occupation of the house since 1988, and has not consumed the electricity.

It is submitted that the electricity bill, filed as Annexure-5 to the writ petition, relates to the period of 31.12.2000 to 31.5.2003 with the arrears. The petitioner has also relied upon extract of mutation record of Municipal Board, Kanpur Nagar, in which name of was mutated vide order dated 20.2.1999.

The petitioner has filed a representation to the Managing Director of KESCO, Civil Lines, Kanpur on 28.7.2003, which

is stated to be still pending.

In paragraph No. 5 of the counter affidavit filed by KESCO, it is stated that electricity connection No. 002519 was released in the name of Sri R.N. Tripathi in November 1991, at the premises of House No. 127/727 W Block, Juhi Gaushala, Kanpur Nagar. There are electricity dues pending against the petitioner/consumer - Sri R.N. Tripathi to the tune of Rs.3,74,677/-, for a period from 31.12.2000 to 31.5.2003 and arrears, which are sought to be recovered from him.

In the counter affidavit, reliance has also been placed upon Section 4 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958, to adjudicate the disputed question of fact on the electricity dues. Section 4 of the Act provides that where a dispute has been raised with regard to the electricity dues, the disputed amount may be deposited under protest and thereafter a suit may be filed, for recovery of the amount so deposited under protest.

In the present case recovery of the amount has already been stayed by order of the Court dated 31.3.2004. Thus provision of Section 4 of the Act would not be directly applicable to the case.

Prima facie, from the sale deed, copy of which has been filed as Annexure-3 to the writ petition, we find that the house was sold by the petitioner to respondent Nos. 4 and 5 on 29.7.1988, and thus the contention of the petitioner that respondent Nos. 4 and 5 filed a false declaration, to obtain electricity connection in the name of the petitioner may be correct. It is however not prudent to decide the issue in writ jurisdiction. The dispute with regard to incorrect billing, for the amount shown, can be raised before the Executive Engineer of the Power Corporation under clause 6.5 of the Electricity Supply Code 2005.

Having regard to the facts and circumstances of the case, we **dispose of** the writ petition with directions that if the petitioner makes a representation to the Executive Engineer, KESCO, Kanpur within 15 days to decide the issue, the representation will be decided within six weeks from the date a certified copy of this order along with other documents, which the petitioner relies, is produced.

As the recovery has been stayed by this court since

31.4.2004, we direct that until decision on the petitioner's representation, under clause 6.5 of the Electricity Supply Code 2005, no coercive steps will be taken against the petitioner, for recovery of the amount under the impugned recovery certificate. If the petitioner fails to file representation within 15 days as directed above, the petitioner will not be entitled to the protection given by this order.

Order Date :- 4.7.2011
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